

TENTATIVE RULING

Case: **Phoenix v. Skydance Skydiving**
 Case No. CV2024-1835

Hearing Date: **July 22, 2026** **Department Thirteen** **9:00 a.m.**

Motion for summary judgment and/or summary adjudication (Oakley Phoenix)

On the Court’s own motion, defendants Prestar, Inc. and Chris Peterson’s (collectively, “Skydance defendants”) motion for summary judgment and/or summary adjudication to claims brought by Oakley Phoenix is **CONTINUED** to **September 23, 2026**, at 9:00 a.m. in Department Thirteen.

Motion for summary judgment and/or summary adjudication (Jae Phoenix)

On the Court’s own motion, Skydance defendants’ motion for summary judgment and/or summary adjudication to claims brought by Jae Phoenix is **CONTINUED** to **September 23, 2026**, at 9:00 a.m. in Department Thirteen.

Plaintiff Jae Phoenix (“Jae”) filed an untimely opposition. (Code Civ. Proc., § 437c, subd. (b)(2) [all papers opposing a motion for summary judgment must be filed with the court and a copy served on each party no less than twenty days before the hearing].) Despite being untimely, the Court will consider Jae’s opposition. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers.”].)

By **September 11, 2026**, Skydance defendants may file a new reply to Jae’s opposition.

No other documents will be considered.

TENTATIVE RULING

Case: **Puentes v. General Motors LLC**
Case No. CV2024-3066

Hearing Date: **July 22, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Martha Puente’s motion for attorneys’ fees is **GRANTED IN PART**. (Civ. Code, § 1794, subd. (d).) For purposes of Civil Code section 1794(d), plaintiff is the prevailing party. (See Fennell decl., ¶¶ 11-13.) The Court finds that the hourly rates for Mr. Fennell, Ms. Dalia, and Mr. Walker, and paralegals are reasonable. (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009 [“The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate.”]; *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682; Fennell decl., ¶¶ 14-16, 37.) Additionally, plaintiff has established that the hours expended by Consumer Law Experts, P.C. on the instant litigation were reasonable. (*Ibid.*; see *Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488 [“In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence”].) However, the Court declines to award attorneys’ fees for the time not yet incurred. (Fennell decl. ISO reply, ¶ 6.) Therefore, the Court awards plaintiff **\$19,714.00**.

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.